

Pooran Prasad Gupta v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 15 July 2022 · WRIT-C No. 7407 of 2022 · **Writ disposed; Para 6.8 objection permitted; coercive action stayed eight weeks.**

HEADNOTE

Writ against a demand notice dated 18.10.2021 disposed of with no opinion on merits. Petitioner given four weeks to object under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3; the objection, if filed, to be decided within four weeks after hearing. Coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Pooran Prasad Gupta petitioned the Allahabad High Court against the State of Uttar Pradesh and two others. He asked that a notice dated 18 October 2021, issued by respondent no. 3, be quashed, and that the respondents be restrained from continuing proceedings on a matter he said had already been settled. The standing counsel treated the notice as a demand. On 5 July 2022 the Court allowed three days to serve respondent no. 3 and directed that the petition be listed afresh.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to a demand notice under Para 6.8

HOLDING

The writ was disposed of without any opinion on the merits. The petitioner may, within four weeks, submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 together with a certified copy of the order. If so submitted, respondent no. 3 shall decide the objection in accordance with law within the next four weeks after a reasonable opportunity of hearing. For eight weeks or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand notice. ¶ 2

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Standing counsel invoked Para 6.8 against the demand notice. The Court disposed of the writ without a merits finding and left the petitioner to that objection before respondent no. 3. ¶ 2

fresh-objection-under-clause-6.8 No objection was treated as already pending. The petitioner was allowed four weeks to file a fresh Para 6.8 objection with a certified copy of the order, to be decided after hearing within the following four weeks. ¶ 2

assessment-6.8-alternate-remedy The demand notice was not quashed or upheld. The challenge was channelled through a Para 6.8 objection, with coercive action withheld for eight weeks or until that objection is decided, whichever is earlier. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE NOTICE DATED 18.10.2021 WAS LIABLE TO BE QUASHED, AND WHETHER THE UNDERLYING MATTER ALREADY STOOD SETTLED

The Court expressed no opinion on the merits and left the objection to respondent no. 3 under Para 6.8. ¶ 2

